

STAN-UGBENE v. CALIFORNIA DEPT. OF CORRECTIONS AND REHABILITATION
Case No. cu23-04075

Motions by Plaintiff for Discovery Sanctions Against Defendant BESTNEST MANAGEMENT, LLC and its Counsel (Soleiman APC and Bradley Burns)

TENTATIVE RULING

A motion to compel further responses to special interrogatories, and/or to requests for production, requires the filing of a separate statement of requests and responses at issue, and reasons for each as to why a further response should be compelled. CRC 3.1345.

No separate statement was filed in support of this motion, to list the requests and/or special interrogatories and responses that Plaintiff contends are deficient, and reasons why as for each a further response should be compelled.

Plaintiff also did not provide the court with a copy of the special interrogatories, or responses, or BESTNEST's responses to the requests for production, so the court cannot tell if those responses included any objections, such as claims of privilege.

Furthermore, the notice of motion failed to cite C.C.P. §2030.300 [authorizing the court to compel further responses to interrogatories] nor §2031.320 [authorizing the court to compel further production in response to requests for production] as bases for the motion.

C.C.P. §1010 requires a notice of motion to "state . . . the grounds upon which it will be made"

While C.C.P. §2023.030 can serve as a separate basis for monetary sanctions as to discovery, it is reserved for egregious conduct which cannot be addressed by motions specific to the type(s) of discovery at issue.

[A] court's authority to impose sanctions under section 2023.030 is not limitless. It is already well established that a court may not rely on section 2023.030 to override the limitations prescribed by any other applicable sanctions provision in the Act. A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision. City of Los Angeles v. PricewaterhouseCoopers LLP (2024) 17 Cal.5th 46, 74.

Furthermore, this motion included a request for issuance of issue and/or evidentiary sanctions, and even for terminating sanctions.

In general, courts should try monetary sanctions first, before considering more drastic types of sanctions.

Lesser sanctions first: “[A] more severe sanction is disfavored if a lesser sanction is available.” Accordingly, ***a court ordinarily must consider monetary sanctions before it proceeds to consider whether other nonmonetary sanctions are appropriate to address the misconduct at issue.*** [City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 C5th 46, 63, 324 CR3d 410, 422]

Before imposing a “terminating” sanction, courts should usually grant lesser sanctions: e.g., orders staying the action until plaintiff complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. It is only when a party persists in disobeying the court’s orders that the ultimate (“doomsday”) sanctions of dismissing the action or entering default judgment, etc. are justified. [Deyo v. Kilbourne (1978) 84 CA3d 771, 796, 149 CR 499, 518; Lopez v. Watchtower Bible & Tract Soc. of New York, Inc. (2016) 246 CA4th 566, 604, 201 CR3d 156, 187—discovery statutes evince an incremental approach, starting with monetary sanctions and ending with ultimate terminating sanction; Podiatric Med. Bd. of Calif. v. Sup.Ct. (Redko) (2021) 62 CA5th 657, 674, 276 CR3d 793, 806, fn. 11; Atlas v. Davidyan (2025) 113 CA5th 1086, 1096, 336 CR3d 313, 321—terminating sanctions imposed after hearing 8 previous motions for discovery non-compliance]. 2 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:2235, p. 27 (emphasis added).

The primary goal of sanctions is to achieve compliance, not to punish.

Compel disclosure: The main purpose is to enable the interrogating party to *obtain* the information sought rather than simply to punish a disobedient party or lawyer. It is an *abuse* of discretion to impose sanctions *solely* for punishment purposes. 2 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:2214, p. 25.

The main exception to this rule could be in egregious cases of intentional spoliation of evidence, or repeated earlier willful violations of discovery rules.

Compare—circumstances justifying “doomsday” sanction as first sanction: The “lesser sanctions first” policy is not an inflexible rule of law. It is therefore not an abuse of discretion to dismiss for continuing willful discovery violations even if no monetary or other sanctions were first imposed. [Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 CA3d 481, 490-491, 282 CR 530, 537 (disapproved on other grounds by Garcia v. McCutchen (1997) 16 C4th 469, 478, 66 CR2d 319, 326, fn. 4); R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 CA4th 486, 497, 89 CR2d 353, 361; New Albertsons, Inc. v. Sup.Ct.

(Shanahan) (2008) 168 CA4th 1403, 1434, 86 CR3d 457, 481—terminating sanction appropriate in first instance “in egregious cases of intentional spoliation of evidence”]. 2 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:2236, p. 28.

There is insufficient evidence to support the conclusion that BESTNEST intentionally destroyed emails or other evidence, nor engaged in repeated earlier violations of discovery rules or court orders.

Finally, this motion was filed more than one month after BESTNEST’s counsel filed a motion to be relieved as counsel. While this discovery motion was set for hearing before that motion to be relieved, the court has some concern that service of the motion papers on BESTNEST’s counsel but not separately also on BESTNEST might result in a lack of due process.

For all of these reasons, this motion is denied, without prejudice to refile and re-serve when the deficiencies noted above have all been satisfactorily addressed.

IN THE MATTER OF J.G. WENTWORTH ORIGINATIONS, LLC
Case No. CU26-03558

Petition for Approval for Transfer of Payment Rights

TENTATIVE RULING

The Payment Transfer Agreement is approved as proposed.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

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